

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING VARIOUS SECTIONS CONTAINED WITHIN CHAPTER 5.12, ALCOHOLIC LIQUOR AND MALT BEVERAGES, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.”

BE IT HEREBY ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That various sections contained within Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the code of the City of Cheyenne, Wyoming, are hereby amended as set out in this ordinance. Sections currently existing within Chapter 5.12 not set out within this ordinance remain unchanged.

5.12.010 Purpose – Authority – General provisions.

C. On behalf of the governing body (licensing authority), the city clerk is authorized to review and issue temporary catering, malt beverage, special event and consumption permits, and to request supporting documentation in conjunction with all applications filed with the city clerk for any type of license or permit identified in this chapter. **ADMINISTRATIVE GUIDELINES APPLICABLE TO TEMPORARY PERMITS ARE ON FILE WITH THE OFFICE OF CITY CLERK.** Prior to issuance, review and approval of applications, including inspection of the proposed premises to be licensed or permitted, will be conducted by various city department representatives as determined by the city clerk.

5.12.020 Definitions.

“Open container” means any bottle, can, container or other receptacle that contains any amount of alcoholic liquor or malt beverage that is open, has a broken or tampered seal, or the contents of which are partially removed. Wine which is resealed for a patron in compliance with the provisions of Wyo. Stat. Sections 12-4-410 (e) and 12-4-413 (f), and “slushies” which are securely sealed and are unopened or untampered with for a patron by a retail liquor licensee pursuant to Section 5.12.070 (B) (2) of this chapter, **AND** licenses and permits issued with an approved waiver of open container do not constitute an “open container” violation.

5.12.110 Open container – Sales and consumption – Exceptions.

A. Except in compliance with Wyo. Stat. Sections 12-4-410 (e) and 12-4-413 (f) and provisions of this chapter, no person shall consume or carry in their immediate possession an alcoholic liquor or malt beverage in an open container, either on foot, within a motor vehicle or other means of conveyance, upon city streets, sidewalks, parks, public parking lots, public school

property, or without the consent of the owner upon any private parking lot or any private areas that are open to the public, except:

2. The chief of police may authorize the city clerk to issue a consumption permit to applicants requesting to consume or carry malt beverages only in **PARKS AND FACILITIES WITH SPACES WHICH MAY BE INDIVIDUALLY RESERVED** the following public parks: Lions Park, Holliday Park, Mylar Park, Smalley Park, David R. Romero South Cheyenne Community Park; and in Brimmer Park, the Pioneer Park Softball Complex, and the Converse Softball Complex **AND POWERS FIELD COMPLEX** in conjunction with softball/baseball games and tournaments; **AND THE CITY OWNED ICE AND EVENTS CENTER, CIVIC CENTER AND CHEYENNE BOTANIC GARDENS, AND AFFILIATED FACILITIES AND GROUNDS,** WHEN approved by the city's department director or authorized representative, overseeing the grounds or responsible for reserving the grounds for applicant use in accordance with facility reservation policies.

3. The chief of police may authorize the city clerk to issue a consumption permit to applicants to consume or carry champagne and/or wine only **IN PARKS AND FACILITIES WITH SPACES WHICH MAY BE INDIVIDUALLY RESERVED** in designated areas in Lions Park, Holliday Park, Mylar Park, Smalley Park, and David R. Romero South Cheyenne Community Park, and at the Cheyenne Botanic Gardens and affiliated facilities, Cheyenne Civic Center and the city owned ice and events center complex, when under lease, in conjunction with a private ceremony, reception or similar event. The designated park areas allowed are those which can be reserved through city staff overseeing the grounds or responsible for reserving the grounds for applicant use in accordance with facility reservation policies **WHEN APPROVED BY THE CITY'S DEPARTMENT DIRECTOR, OR AUTHORIZED REPRESENTATIVE, OVERSEEING THE GROUNDS OR RESPONSIBLE FOR RESERVING THE GROUNDS FOR APPLICANT USE IN ACCORDANCE WITH FACILITY RESERVATION POLICIES.**

B. The city clerk, with approval by the chief of police, may issue a catering or malt beverage permit, including waiver of open container, to:

2. Applicants requesting to sell malt beverages in conjunction with adult softball/baseball games and tournaments held at the Pioneer Park Baseball Complex **AND POWERS FIELD COMPLEX**, as authorized by city staff responsible for reserving the facility for applicant use in accordance with facility reservation policies. Sales provided under a catering permit shall be restricted to malt beverages only.

5.12.160 Violations.

F. EXCEPT AS PROVIDED BY WYOMING STATUTE OR AUTHORIZED PURSUANT TO THE PROVISIONS OF THIS CHAPTER, LIQUOR LICENSEES AND PERMIT HOLDERS SHALL NOT KNOWINGLY SELL OR PROVIDE AN OPEN CONTAINER, AS DEFINED IN SECTION 5.12.020 OF THIS CHAPTER, FOR PATRONS TO EXIT THE LICENSED BUILDING OR TO CONSUME OUTSIDE OF THE LICENSEE'S OR PERMITTEE'S APPROVED CONSUMPTION PREMISES.

5.12.140 Persons under the age of twenty-one (21) years – Restrictions – Provisions.

~~B. Restaurant and bar and grill licensees~~ **ESTABLISHMENTS, AUTHORIZED UNDER AN ANNUAL LIQUOR LICENSE TO SELL ALCOHOLIC LIQUORS AND MALT BEVERAGES, THAT MEET THE DEFINITION OF A RESTAURANT UNDER WYO. STAT. SECTION 12-1-101 (A)(XIV)** may permit a bona fide employee who is at least eighteen (18) years of age to serve alcoholic liquor and malt beverages to patrons in designated dining areas which are open to the public.

Section 2. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

MARIAN J. ORR, MAYOR

(S E A L)

ATTEST:

CAROL INTLEKOFER, CITY CLERK

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